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Case Number: 25VECV05026 Hearing Date: September 17, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Brunelle-Schutte,

Plaintiff,

v.

Renovate

Properties, LLC, et al.

Defendants.

Case Number Department

25VECV05026 107

COURT'S [TENTATIVE]

ORDER RE:

Demurrer without Motion to Strike;

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Sustained with leave to amend

I.

BACKGROUND

Plaintiff

Jacquelyn Brunelle-Schutte ("Plaintiff") resided with her husband, Clair R. Schutte Sr. ("Clair") at property located at 6648 Peach Ave, Van Nuys, CA 91406 (the "Subject Property"). The Subject Property was held in the Clair R. Schutte Sr. Trust dated April 29, 2017 (the "Trust"), with Clair as trustee. Plaintiff is Clair's surviving spouse and the successor in interest to the Trust.

On

October 3, 2023, Defendant Renovate Properties LLC ("Renovate Properties") executed a grant deed purporting to convey the Subject Property to Defendant M & R Enterprises for \$950,000. Defendant First American Title Company ("First American") prepared and processed the October 3, 2023, grant deed. First American delayed in recording the October 3, 2023, grant deed for three months and recorded it on January 5, 2024.

In

early December 2023, Renovate Properties, through its representative, Defendant Russell Nelson, a licensed real-estate salesperson, contacted Plaintiff and Clair to schedule a meeting to evaluate the Subject Property and provide a market-value estimate.

Renovate

Properties offered \$760,000 to purchase the Subject Property from Plaintiff and Clair. Renovate Properties had already executed the October 3, 2023, grant deed conveying the Subject Property to M & R Enterprises for \$950,000. Renovate Properties concealed the earlier transfer, the higher sale price, and the agreement with M & R Enterprises. Nelson represented to Plaintiff and Clair that \$760,000 was the Subject Property's "true market value" and "stated or implied that no other agreements, offers, or transactions involving the [Subject Property] existed."

Nelson

and Defendant Seller's Advantage also did not disclose Renovate Properties "had already entered into a binding agreement to resell the [Subject Property] for a higher price, and that the October 3 Grant Deed had been executed months earlier."

In reliance on Renovate Properties' misrepresentations and concealment, Plaintiff and Clair agreed to sell the Subject Property to Renovate Properties for \$760,000. On December 21, 2023, Clair executed a grant deed conveying the Subject Property to Renovate Properties for \$760,000. The deed was recorded on December 28, 2023.

On September 5, 2025, Plaintiff, individually and as Trustee of The Clair R Schutte Sr. Trust Dated April 29, 1982, filed a complaint against Defendants Renovate Properties, M & R Enterprises, First American, Nelson, Damon Lines, and Does 1 to 100, alleging seven causes of action.

On December 10, 2025, Plaintiff, individually and as Trustee of The Clair R Schutte Sr. Trust Dated April 29, 1982, filed a first amended complaint against Defendants Renovate Properties, M & R Enterprises, First American, Seller's Advantage, Inc., Nelson, Lines, Adele Loraine Rawls Tucker, Tucker Real Estate, Inc., and Does 1 to 100, alleging causes of action for: (1) fraud (intentional misrepresentation); (2) fraudulent concealment; (3) elder financial abuse in violation of the California Welfare and Institutions Code; (4) conspiracy to commit fraud; (5) aiding and abetting elder financial abuse; (6) negligence; (7) negligent supervision and training; (8) unjust enrichment; (9) breach of fiduciary duty; (10) violations of Business and Professions Code section 17200 et seq.; and (11) declaratory relief.

On January 21, 2026, Cross-Complainant M & R Enterprises filed a cross-complaint against Defendants First American Title Company, Pacific One Escrow, Inc., and Roes 1 to 100, alleging causes of action for: (1) negligence; (2) breach of fiduciary duty; (3) contractual indemnity; (4) equitable indemnity; (5) comparative indemnity; (6) contribution; and (7) declaratory relief.

On May 21, 2026, the court sustained the demurrer of Renovate to the Fraud

(Intentional Misrepresentation), Fraudulent Concealment, Financial Elder Abuse, Conspiracy to Commit Fraud causes of action, and overruled the demurrer to the Declaratory Relief cause of action in the first amended complaint. The court found the motion to strike moot in part and denied the motion to strike on the remainder.

On

the same date, the court also sustained the demurrer of Nelson to the Fraud (Intentional Misrepresentation), and Conspiracy to Commit Fraud causes of action, and overruled the demurrer to the Fraudulent Concealment, Financial Elder Abuse, Declaratory Relief cause of action in the first amended complaint. The court found the motion to strike moot in part and denied the motion to strike on the remainder.

The

court also sustained the demurrer of Sellers Advantage to Fraud (Intentional Misrepresentation), and Conspiracy to Commit Fraud causes of action, and overruled the demurrer to the Fraudulent Concealment, Financial Elder Abuse, Aiding and Abetting Elder Financial Abuse, Negligence, Negligent Supervision and Training, and Declaratory Relief, causes of action in the first amended complaint. The court denied the motion to strike.

On

June 24, 2026, Plaintiff filed a nine cause of action second amended complaint for (1) fraud (intentional misrepresentation); (2) fraudulent concealment; (3) elder financial abuse in violation of the California Welfare and Institutions Code; (4) aiding and abetting elder financial abuse; (5) negligence; (6) negligent supervision and training; (7) breach of fiduciary duty; (8) violations of Business and Professions Code section 17200 et seq.; and (9) declaratory relief.

Defendant

First American Title Company presents a demurrer to the first, second, third, fourth, fifth, eighth, and ninth causes of action for (1) fraud (intentional misrepresentation); (2) fraudulent concealment; (3) elder financial abuse in violation of the California Welfare and Institutions Code; (4) aiding and abetting elder financial abuse; (5) negligence; (8) violations of Business and Professions Code section 17200 et seq.; and (9) declaratory relief causes of action. The demurrer is opposed. A reply was also filed.

II.

TIMELINESS

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“A person against whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint.” (Code Civ. Proc., §430.40, subd. (a).)¿

Per Code

of Civil Procedure section 1005, subdivision (b), moving papers must be filed at least 16 court days before they are set for hearing, oppositions must be filed at least nine court days before the set hearing, and replies must be filed at least five court days before the set hearing.

The demurrer was filed 47 days after the filing of the second amended complaint. Nothing in the declaration of counsel indicates any agreed upon extension of time for service of the demurrer, or filing of a requested extension. [Declaration of Lisa Coe.] The demurrer is untimely.

Plaintiff submitted no objection to the timing of the motion. The court therefore considers the merits.

III.

MEET

AND CONFER

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California Code of Civil

Procedure section¿430.41, subdivision (a) requires parties to “meet and confer in person, by telephone, or by video conference” in good faith before the filing of a demurrer to attempt to informally resolve the objections raised in the demurrer.¿The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc. §430.41, subd. (a)(3).)¿

Defense

counsel represents a video meet and confer effort. Defendants satisfied the meet and confer requirement.

IV.

LEGAL

STANDARD

“A demurrer tests the pleading alone, and not the evidence or the facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (“E-Fab”) (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Id.) The court also considers “judicially noticed matters.” (Id.) A complaint must contain “[a] statement of the facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., §425.10, subd. (a)(1).) A “complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts.” (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.)

;

A party may demur to a complaint or cross-complaint because it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., §430.10, subd. (e).)

V.

JUDICIAL NOTICE

The court takes judicial notice of the grant deeds.

VI.

DISCUSSION

The essence of the demurrer challenges any basis of liability due to the lack of any direct communications between Plaintiff and First American Title Company (First). The

only alleged conduct of First involves the delayed recording of the Renovate Deed for approximately three months. [Sec. Amend. Comp., 29-30, 42, 61-62, 75. 97-99.] First was in no way involved in any of the underlying transactions or negotiations. Plaintiff in opposition contends the demurrer exceeds the scope of review and improperly relies on extrinsic inference. First reiterates the lack of a viable claim and conclusive pleading.

Fraud (Intentional Misrepresentation):

First challenges the lack of any representations regarding the value or transaction history regarding the property. Plaintiff generally defends the sufficiency of the fraud claim through reiteration of the concealment and aiding and abetting allegations based on knowing assistance of the underlying scheme demonstrated by the three month delayed recording. First in reply notes the lack of any address of the misrepresentation standard.

The elements of a fraud cause of action are “(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Rattagan v. Uber Technologies, Inc. (“Rattagan”) (2024) 17 Cal.5th 1, 32.) Fraud must be alleged with specificity. (Id. at p. 43.) “When affirmative misrepresentation fraud is alleged, ‘This particularity requirement necessitates pleading facts which “show how, when, where, to whom, and by what means the representations were tendered.”’” (Id. original italics.)

Plaintiff effectively concedes to the lack of any valid misrepresentation claim against First based on the lack of any address of the standard and instead reference to the concealment and aiding and abetting claims based on the alleged delayed recording. The second amended complaint lacks any facts alleging any actual representation by any representative of First to Plaintiff. Concealment of material information will not meet the misrepresentation standard. [Sec. Amend. Comp., ¶¶ 61-62, 66.]

The court sustains the demurrer to the first cause of action with leave to amend.

Fraudulent Concealment:

First challenges the concealment claim based on a failure to allege a duty to disclose any information to Plaintiff. Plaintiff in opposition asserts a duty to disclose, due to participation in the underlying transaction thereby imparting unique, not publicly available information. First in reply reiterates the lack of any basis of a duty to disclose.

"The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact." (Rattagan, supra, 17 Cal.5th at p. 40.) Fraud must be plead with specificity. (Id. p. 43.)

"A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment)." (Rattagan, supra, 17 Cal.5th at p. 40.) "Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as 'between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.] All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.' [Citation.] Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large." (Id. at pp. 40-41.)

Plaintiff relies on a conclusive assumption of a duty to disclose without any actual specifically pled basis for disclosure. [Sec. Amend. Comp., ¶¶ 73, 75-76, 84.] Given the heightened pleading standard for fraud, the second amended complaint remains deficient as to First. The demurrer on this ground is sustained with leave to amend.

Elder Financial Abuse:

First challenges any assertion of financial elder abuse due to the lack of any involvement with any negotiation or sale of the property. The opposition appears to lack any specific response to this part of the demurrer and instead only generally addresses the aiding and abetting cause of action as it relates to the instant claim. First in reply reiterates the lack of a valid cause of action.

An “[e]lder” means any person residing in [California], 65 years of age or older.” (Welf. & Inst. Code, § 15610.27.)

Elder abuse includes any of the following:

Physical abuse, neglect, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering.

1. The deprivation by a care custodian of goods or services that are necessary to avoid physical harm or mental suffering.

1. Financial abuse, as defined in Section 15610.30.

(Welf. & Inst. Code, § 15610.07, subd. (a).)

Financial elder abuse occurs when a person or entity: “(1) Takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful

use or with intent to defraud, or both. (2) Assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both. (3) Takes, secretes, appropriates, obtains, or retains, or assists in taking, secreting, appropriating, obtaining, or retaining, real or personal property of an elder or dependent adult by undue influence, as defined in Section 15610.70." (Welf. & Inst. Code, § 15610.30, subd. (a).)

"A person or entity

shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult." (Welf. & Inst. Code, § 15610.30, subd. (b).)

"For purposes of this section, a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder or dependent adult is deprived of any property right, including by means of an agreement, donative transfer, or testamentary bequest, regardless of whether the property is held directly or by a representative of an elder or dependent adult." (Welf. & Inst. Code, § 15610.30, subd. (c).) "Undue influence" is defined as "excessive persuasion that causes another person to act or refrain from acting by overcoming that person's free will and results in inequity." (Welf. & Inst. Code, § 15610.70, subd. (a).)

Financial elder abuse

occurs when a person or entity "[a]ssists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both [.]" (Welf. & Inst. Code, § 15610.30, subd. (b).) Plaintiff alleges Plaintiff and Clair were elders within the meaning of Welfare and Institutions Code section 15610.27 Plaintiff alleges that Defendant Renovate Properties LLC "wrongfully took and obtained title to the [Subject Property] belonging to Plaintiff and CLAIR by inducing them – through deception, concealment, and false valuation – to execute a Grand Deed conveying the [Subject Property] for \$760,000 when Renovate had already entered into a prior agreement to resell it for \$950,000." Plaintiff alleges Defendant "personally directed Nelson's conduct, orchestrated the hidden resale agreement, and personally profited from the double-sale scheme, thereby committing elder financial abuse." This is sufficient to allege Defendant assisted in taking Plaintiff's real property.

To the extent First

Plaintiff relies on the insufficiently pled fraud causes of action and/or the forthcoming aiding and abetting cause of action [Sec. Amend. Comp., ¶¶ 97-99], Plaintiff lacks any actual facts supporting direct participation in the alleged financial abuse scheme. The demurrer is sustained with leave to amend.

Aiding and Abetting

Elder Financial Abuse:

First challenges the

aiding and abetting elder financial abuse cause of action due to the lack of any underlying valid claim for financial elder abuse.

In *Casey v. U.S. Bank Nat. Assn.* (2005)

127 Cal.App.4th 1138, 1144, the Court of Appeal stated: California has adopted the common law rule for subjecting a defendant to liability for aiding and abetting a tort. “ ‘Liability may ... be imposed on one who aids and abets the commission of an intentional tort if the person (a) knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person's own conduct, separately considered, constitutes a breach of duty to the third person.’

As addressed above,

Plaintiff insufficiently alleges financial elder abuse against First. Reflexive reference and dependence on a prior invalid cause of action will not render the prior deficiencies valid simply based on a conclusion of a joint scheme, even under the demurrer standard. The demurrer is sustained with leave to amend.

Negligence:

First challenges any

legal basis of a duty of care. Plaintiff concedes to the lack of duty on claims arising strictly from title insurance duties, but maintains Plaintiff seeks to allege a claim beyond the duties of the title insurance company (e.g. participation in the fraud and elder abuse scheme). First in reply reiterates the lack of any basis of duty separate and apart from title insurance services.

“The elements of a cause

of action for negligence are well established ... (a) a legal

duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.” (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.) Negligent hiring and supervision “[l]iability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.” (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.) “[A] title insurer who has not undertaken to perform as an abstractor owes no duty to disclose recorded liens or other clouds on title. The reason derives from the difference between an abstract of title prepared by an abstractor and a preliminary title report prepared by a title insurer prior to issuing a title insurance policy.” (Siegel v. Fidelity Nat. Title Ins. Co. (1996) 46 Cal.App.4th 1181, 1189–1190.)

Plaintiff specifically alleges the following as to First: “Defendant First American Title Company owed Plaintiff a duty of reasonable care in the performance of title, escrow, deed preparation, and recording services related to the PROPERTY. These duties included: (a) accurately verifying title; (b) ensuring that any conveyance was lawful; (c) avoiding preparation or processing of invalid deeds; (d) preventing conflicting or misleading title instruments; and (e) exercising the skill, care, and diligence expected of a licensed title and escrow professional.” [Sec. Amend. Comp., ¶ 134.]

The plain language of the operative complaint alleges a claim squarely within the services of a title insurer notwithstanding the “escrow professional” language. (See Summit Financial Holdings, Ltd. v. Continental Lawyers Title Co. (2002) 27 Cal.4th 1160A, 712.) Citation to the elements of negligence in paragraph 135 will not bootstrap the conclusively pled allegations as to First. Reliance on the previously found insufficient fraud and financial elder abuse causes of action also renders the demurrer valid due to the prior insufficient cause of action, but also a failure to distinguish any conduct between negligence and the intentional tort of fraud. The demurrer is sustained with leave to amend.

Violations of Business and Professions Code section 17200 et seq.:

First challenges the subject cause of action as derivative of the prior claims, and therefore insufficiently pled. First also maintains recovery is limited to injunctive

relief. Plaintiff maintains the claim properly seeks restitution., without apparently addressing the factual challenge presented. First in reply reiterates the challenges to the sought after relief.

The UCL does not

proscribe specific acts, but broadly prohibits 'any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising....' [¶] "A private plaintiff must make a twofold showing: he or she must demonstrate injury in fact and a loss of money or property caused by unfair competition.' (Citation.)"

(Durell v. Sharp Healthcare (2010)

183 Cal.App.4th 1350, 1359.) Fact specific pleading is not required to allege an unfair business practice. (Quelimane

Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 46–47.

An "unlawful" practice

"means any practices forbidden by law, be it civil

or criminal, federal, state, or municipal, statutory, regulatory, or

court-made.... 'Unfair' simply means any practice whose harm to the victim

outweighs its benefits. (Citation.) 'Fraudulent,' as used in the statute, does

not refer to the common law tort of fraud but only requires a showing members

of the public "are likely to be deceived." (Saunders v. Superior Court (1994) 27 Cal.App.4th 832,

838–839.) "[A]n unfair business practice also means" the relied upon

public policy provision is "tethered" to a specific regulatory provisions. (Lueras v. BAC Home Loans Servicing, LP (2013) 221 Cal.App.4th 49, 81.) Fundamentally, recovery requires a direct harm to the

consumer, and actual reliance. (Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 326–327.)

The cause of action

appears as a series of elements and conclusions, with apparent reliance on the

prior causes of action by incorporation. [Sec. Amend. Comp., ¶¶ 167-179.] To

the extent Plaintiff fails to allege any factual basis of liability against First,

the subject cause of action also fails for deficient pleading. The demurrer is

sustained with leave to amend.

Declaratory Relief:

First challenges the

subject cause of action as derivative of the prior defective causes of action.

Plaintiff cites to the demurrer to the first amended complaint as support for a

validly pled cause of action. First cites to the actual pled claims against

First, not the other defendants.

“[S]ection 1060 does not require a breach of contract in order to obtain declaratory relief, only an ‘actual controversy.’ Declaratory relief pursuant to this section has frequently been used as a means of settling controversies between parties to a contract regarding the nature of their contractual rights and obligations.” (Osseous Technologies of America, Inc. v. Discovery Ortho Partners LLC (2010) 191 Cal.App.4th 357, 365.) Declaratory relief operates prospectively. (Id. at p. 366.) “[U]nder California rules, an actual controversy that is currently active is required for such relief to be issued, and both standing and ripeness are appropriate criteria in that determination. (Citation.) One cannot analyze requested declaratory relief without evaluating the nature of the rights and duties that plaintiff is asserting, which must follow some recognized or cognizable legal theories, that are related to subjects and requests for relief that are properly before the court.” (Otay Land Co.v. Royal Indemn. Co. (2008) 169 Cal.App.4th 556, 563.) “[Declaratory relief] serves to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs; in short, the remedy is to be used in the interests of preventive justice, to declare rights rather than execute them.” (Travers v. Loudon (1967) 254 Cal.App.2d 926, 931.)

To the extent the entire cause of action remains derivative and dependent on the prior insufficiently pled claims, Plaintiff fails to allege a claim against First. [Sec. Amend. Comp., ¶¶ 180-184.] Plaintiff’s position as to the other defendants prior demurrers in no way supports or justifies any claims against this moving defendant. Further, other than conclusions of an ongoing controversy, the fraud and elder abuse claims appear to rely on past conduct, rather than any ongoing controversy. The demurrer is sustained with leave to amend.

IV.

LEAVE

TO AMEND

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, ‘leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.)”

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The

subject demurrer constitutes the first review as to the claims against First.

The court declines to conclude that Plaintiff cannot state a valid claim on any and all causes of action at this stage of review. (Code Civ. Proc., 430.41, subd. (e)(1); (Youngman v. Nevada Irr. Dist. (1969) 70 Cal.2d 240, 245.)

V.

CONCLUSION¿

For the

foregoing reasons, the court sustains the demurrer as to the first, second, third, fourth, fifth, eighth, and ninth causes of action for (1) fraud (intentional misrepresentation); (2) fraudulent concealment; (3) elder financial abuse in violation of the California Welfare and Institutions Code; (4) aiding and abetting elder financial abuse; (5) negligence; (8) violations of Business and Professions Code section 17200 et seq.; and (9) declaratory relief causes of action with 20 leave to amend.

Dated: September 17, 2026 _____ Hon. Eric Harmon

Judge of the Superior

Court